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Solicitation/Contract Form Continuation

FY26 Northern Area Gate Attendants

INSTRUCTIONS TO OFFERORS

PREPARING YOUR QUOTE:

Your Quote shall consist of ONLY the following list of required items:

- 1) Submit a signed copy of the first page of the solicitation
 - a. Complete block 17a with your name and CAGE Code.
 - b. Complete and sign blocks 30a, 30b, and 30c (digital signatures are accepted).
 - c. DO NOT SUBMIT A COPY OF THE SOLICITATION IN ITS ENTIRETY.
- 2) Submit a signed copy of all amendments issued, if any. It is your responsibility to monitor SAM.gov for amendments. DO NOT SUBMIT A COPY OF THE AMENDMENT IN ITS ENTIRETY. Only pages that require a vendor response and/or signature shall be submitted.
- 3) Submit a completed copy of the Contractor Information Sheet provided in the Solicitation.
- 4) Complete the pricing schedule provided with the solicitation. All items in the pricing schedule must be completed, including optional items. All items must include a dollar value.
- 5) Complete the subcontractor data worksheet provided with the solicitation. Your quote must identify the business size and percentage of work to be completed by the prime contractor; and the business name, address, the percentage of work to be completed by the subcontractor. Offerors shall identify the business size of any subcontractors based on the NAICS code identified. Offerors must clearly identify whether a subcontractor (s) will be performing work, the percentage of work to be performed by each subcontractor, and the socio-economic category into which each identified subcontractor falls. (FAR 52.219-14 LIMITATIONS ON SUBCONTRACTING FOR SMALL BUSINESS (DEVIATION 2021-00008) (FEB 2023).
- 6) Complete the Representations and Certifications (Reps and Certs), unless already completed and current in the System for Award Management at <https://sam.gov/>. Notice: Failure to respond to FAR Provision 52.204-26 and, if applicable FAR Provision 52.204-24, will deem your offer nonresponsive and unawardable.
- 7) Contractor must provide at time of quote a current, valid copy of their (or their Subcontractor's) Commercial Herbicide Applicator's license in accordance with the requirements in the SOW. Submission of the License number only will not be accepted.
- 8) Please NOTE this solicitation requires offerors to enter a National Institute of Standards and Technology (NIST) score in the Supplier Performance Risk System (SPRS). The NIST score is a responsibility item. Those without a NIST score in SPRS will be deemed NON-RESPONSIBLE and will not be eligible for award.

The SPRS NIST Special Publication 800-171 website provides a comprehensive set of reference materials to assist you in this effort and includes guides, frequently asked questions, and tutorials. This website is found at : <https://www.sprs.csd.disa.mil/nistsp.htm>

Potential offerors are encouraged to allow ample time to complete this responsibility item.

NEED HELP:

If you need assistance with SAM.gov, PIEE, NIST or preparing your quote, please contact your local Procurement Technical Assistance Center (PTAC). You may find your PTAC here: <https://www.aptac-us.org/contracting-assistance/>.

Offerors must have an active registration in SAM.gov to be eligible for award.

In accordance with AFARS 5132.702(a)(ii)(B): Funds are not presently available for this acquisition. No contract will be awarded until appropriated funds are made available.

Quotes shall be valid for an additional 45 days past the date quotes are due.

SUBMITTING YOUR QUOTE

Offerors shall limit their offer to include ONLY the required items listed in "PREPARING YOUR QUOTE" above.

THE ONLY AUTHORIZED TRANSMISSION METHODS FOR SUBMITTING QUOTES IN RESPONSE TO THIS SOLICITATION IS THROUGH THE PIEE SOLICITATION MODULE WEBSITE AT: <https://piee.eb.mil>, AND/OR SUBMISSION THROUGH E-MAIL TO THE CONTRACT SPECIALIST, OR THROUGH FACSIMILE (FAX) TO (918) 669-7436.

Quote submissions shall be uploaded to the PIEE Solicitation Module website by the identified date and time.

Solicitation Number: W912BV25QA041

VENDORS ARE STRONGLY ENCOURAGED TO READ THE PIEE SOLICITATION MODULE WEBSITE INSTRUCTIONS.

Electronic File Submission Organization:

Offerors shall submit their quote in response to this RFQ via the PIEE Solicitation Module in ONE (1) transmission to the identified USACE receivers in "PIEE Solicitation Module Website and Submission Receiver Information" below. It shall be the offeror's responsibility to check the websites for any amendments. The offeror shall submit in the quote all requested information specified in this solicitation.

Ensure files are compatible and viewable in Microsoft Office 2013, or later, format. Self-extracting exe files are not acceptable. Zip files are not recommended. DO NOT USE Cloud storage providers, google docs, web-based drop boxes, OneNote/OneDrive, URLs, web-based format, or any other virtual/web-based memory services are NOT acceptable methods of submitting a quote.

PIEE Solicitation Module Website and Submission Receiver Information:

PIEE Solicitation Module: <https://piee.eb.mil/>

Email addresses to enter as 'Receivers' in PIEE Solicitation Module, Contract Specialist Ryan.J.Kelly@usace.army.mil and Contracting Officer Rudolfo.J.Morales@usace.army.mil.

SUBCONTRACTING INFORMATION:

SELF-PERFORMING:

Percentage of Work to be performed by the Offeror/Prime Contractor's own forces:

Subcontractor(s)* - if no subcontractor(s), write NONE:

Name of Subcontractor	Address	Business Size based on NAICS Provided in the Solicitation (Small or Large)	Socio-economic Category **	Percentage of Work to be Completed by Sub-Contractor

*Offerors using a subcontractor(s) shall provide a signed and dated Letter of Commitment from each subcontractor. Offerors who fail to provide a signed and dated Letter of Commitment from each subcontractor will not be considered for award.

**Socio-economic categories for some small businesses include:

- 8(a)
- Economically Disabled Women-Owned Small Business (EDWOSB)
- HUBZone
- Service-Disabled Veteran-Owned Small Business (SDVOSB)

Veteran-Owned Small Business (VOSB)

Women Owned Small Business (WOSB)

PAST EXPERIENCE INFORMATION:

Contract Number	Location	POC Information (Name/Phone)	\$ Amount of Contract

CONTRACTOR INFORMATION SHEET

The following information is required with quote submission:

Offeror's Name:

Offeror's Mailing Address:

Offeror's Phone Number:

Offeror's Email Address:

Commercial and Government Entity (CAGE) Code:

List the individual(s) that will work as Gate Attendant(s)

1.

2.

Did you apply to any other Gate Attendant lakes/parks?

1.

2.

3.

4.

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-5 **Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services.** (Jan 2025)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (Jan 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

[] (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[] (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

[] (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

[] (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

[] (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

[] (6) [Reserved].

[] (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (Dec 2023) of 52.204-30.

☐ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☒ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-7.

☐ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21)

(i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (Nov 2016) of 52.219-9.

☐ (iii) Alternate II (Nov 2016) of 52.219-9.

☐ (iv) Alternate III (Jun 2020) of 52.219-9.

☐ (v) Alternate IV (Jan 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (Mar 2020) of 52.219-13.

☒ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

☒ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (Mar 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

☒ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).

☐ (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

☐ (34)

(i) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).

☐ (ii) Alternate I (Feb 1999) of 52.222-26.

☐ (35)

(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (Jul 2014) of 52.222-35.

☒ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (Jul 2014) of 52.222-36.

☐ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

☒ (39)

(i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☐ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, et seq.).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, et seq.).

☐ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, et seq.).

☐ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, et seq.).

☒ (46) 52.223-23, Sustainable Products and Services (May 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

☐ (47)

(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

☐ (ii) Alternate I (Jan 2017) of 52.224-3.

☐ (48)

(i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (Oct 2022) of 52.225-1.

☐ (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

☐ (ii) Alternate I [Reserved].

☐ (iii) Alternate II (Jan 2025) of 52.225-3.

☐ (iv) Alternate III (Feb 2024) of 52.225-3.

☐ (v) Alternate IV (Oct 2022) of 52.225-3.

☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

☐ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

☐ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (Apr 2003) of 52.247-64.

☐ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☐ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

☐ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

☐ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118 (g)).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(x) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	May 2024		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.233-1	Disputes.	May 2014		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.242-15	Stop-Work Order.	Aug 1989		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.232-1	Payments.	Apr 1984		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-9	Limitation on Withholding of Payments.	Apr 1984		
52.232-11	Extras.	Apr 1984		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-10	Waste Reduction Program. (DEVIATION 2025-O0004)	May 2024	Deviation 2025-O0004	Mar 2025

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		

FAR Clauses Incorporated by Full Text

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov ____ [Insert one or more Internet addresses]

(End of clause)

52.217-8 Option to Extend Services. (Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30[insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 365 days[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days[60days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed three (3) years(months) (years).

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (DFARS)[insert regulation name] (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

(i) Price Evaluation: The Government shall review acceptable offers by lowest price. Contractors are to provide pricing for each line item on the Pricing Schedule provided in the Solicitation. Price Reasonableness and affordability will also be evaluated.

(ii) Past Performance: The Government will review all CPARS evaluations regardless of project and may contact points of contact or evaluate any information provided to the Contract Specialist or Contracting Officer to include USACE District Past Performance Files. Offerors must demonstrate the following minimum acceptability standards:

a. All past or current performance must have overall ratings of Satisfactory or otherwise Acceptable or above.

b. Any derogatory information may be grounds for an Unacceptable rating.

c. Offerors with no past performance will receive a "Neutral" rating for this factor.

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-7	System for Award Management.	Nov 2024		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

**GENERAL SCOPE OF WORK
GATE ATTENDANT SERVICES
VARIOUS PUBLIC SITE AREAS (PSAs)
TULSA DISTRICT, U.S. ARMY CORPS OF ENGINEERS
OKLAHOMA AND TEXAS
2026**

A. GENERAL CONTRACT REQUIREMENTS.

1. The contractor shall perform duties as outlined in this scope of work (**SOW**), and as identified in the "Site Specific SOW" (**SS SOW**) for individual Public Site Areas (**PSA**).
2. Whenever the term "contractor" or "gate attendant" (**GA**) is used in describing the requirements and responsibilities, the contractor is solely and fully responsible for ensuring the performance of the duties and responsibilities described.
3. Criminal Background Investigation.
 - a. All persons handling Government monies or accessing the Government computer system, under this contract, shall have a Criminal Background Investigation (background check). Information for this background check (name, address, SS# and DL#) shall be submitted to the Corps of Engineers local project office Point of Contact (POC) no less than **5 working days** prior to the start of training and/or work. Contractor shall be approved by the Government before they will be allowed to begin the required pre-performance training or perform work.
 - b. The Government reserves the right to deny access to any individuals who has any derogatory information in their background check. All background checks shall be conducted by the Corps of Engineers local lake office and will be conducted nationwide.
 - c. Individuals will be allowed to begin work if they do not have any disqualifying factors. Background check disqualifying factors include: any felony conviction; a misdemeanor conviction within the previous five years for a crime of violence, drug use/possession, or theft. If an individual does not have a disqualifying factor, but has a misdemeanor conviction, those individuals will be evaluated or considered on a case by case basis.
 - d. The contractor shall provide background information, as per 3. a. on all persons that may perform work under this contract.
 - e. By execution of the contract, the contractor certifies that all persons providing such services under the contract are so qualified.
4. Security bonding. Contractor shall be fully bonded/insured to secure funds not received by the Government; in amounts stated in the Site-Specific SOWs (**Suspected theft of Government monies or supplies will result in immediate termination and criminal prosecution.**). The contractor shall not start work until proof of such bond or security is furnished. The contractor has the following options to fulfill this requirement:

- a. Obtain a fidelity bond from an insurance agent with the US Army Corps of Engineers, Tulsa District COE, named as the recipient. Cost is approximately 10% of the bond; or
 - b. Furnish an irrevocable, unconditional letter of credit from a financial institution in the specified amount.
 - c. Security bonding shall remain in full force for the duration of the contract period (1 year from award of contract) and for a minimum of 60 days past the completion of the contract end date.
 - d. Final payment shall not be made under the terms of this contract until all funds are reconciled to the satisfaction of the Government.
 - e. Condition in the bond requires the bonding company to notify the Corps of Engineers before the bond is modified, terminated or cancelled, prior to the original termination dates.
5. Past performance reference information shall be provided with contractor's quotation. Contractors who have had a contract or purchase order "Terminated for Default" or "Termination for Cause" by the Government during the previous five years shall not be eligible for contract award. If this is discovered after award, the contract will be terminated.
 6. Experience in the use of a computer is required for most GA positions (unless otherwise noted in the Site-Specific Scope of Work/SS SOW). If contractor is unable to properly operate the computer and use the **Recreation One Stop (R1S)** program, the contractor will be deemed unable to perform the contract requirements and the contract will be terminated by the KO.
 7. Work consists of a variety of duties managing the PSAs/day use areas as stated in section "E. GATE ATTENDANT GENERAL DUTIES" below; and/or as stated in the SS SOWs.
 8. The contract consists of a one (1) year Base period, and two (2) 1-year Option Periods. Each contract period is twelve (12) months. The total duration of this contract, including the exercise of any Options, shall not exceed three (3) years. Exercising of an Option Period is at the sole discretion of the Government.
 - a. Actual performance period(s) for each PSA are stated in the SS SOWs.
 - b. The performance start and end dates will vary from year to year based on scheduled workdays. However, work will start no earlier or end no later than stated performance periods for each PSA. The contractor shall contact the Lake Office within 5 days upon receipt of the initial contract award as well as any modification to exercise any Option Period to coordinate the work schedule.
 9. The Government reserves the right to select which PSA and/or project the contractor shall work, should the contractor submit offers at more than one location.
 10. Gate attendant services shall only be performed by the individuals listed in the Offeror's Information Sheet. If for any reason the contractor cannot perform the prescribed work, the contract will be terminated by the KO.

11. The contractor shall abide by all Corps of Engineers management actions and decisions and will follow all directions given to them by the POC and/or the KO, both verbal and written. The contractor shall not voice any negative opinions to the public or express derogatory statements which may lead to termination of the contract.
12. Gate attendants shall be courteous and display a professional attitude to the public at all times. Gate attendants will call Park Rangers immediately to assist if they encounter any problem with a park visitor. The contractor will cooperate fully with other contractors, camp hosts, volunteers, etc., and any problems will be resolved by the POC or KO.
13. Payment shall be processed on a monthly basis. Payment will be made based upon the amount proposed by the contractor and awarded by the Government. All payments will be made via Electronic Funds Transfer (EFT).

B. CONTRACTOR FURNISHED EQUIPMENT/MATERIALS, ETC.:

1. This contract requires two (2) individuals to fulfill the duties during the performance period (unless otherwise noted in the SS SOW). One person is required to occupy the gatehouse at all times during the work shift, and one person to be available for required park surveillance or other duties.
2. The contractor is required to live on-site in a contractor-furnished trailer/camper, to be parked at a location designated by the POC (usually near the entrance of the PSA or as otherwise stated in the SS SOW).
 - a. The contractor's campsite shall be maintained in a clean and sanitary condition at all times and in accordance with CFR Title 36 at all times.
 - b. The contractor shall not have unauthorized storage buildings, satellite receivers or similar items on the site.
 - c. Dog pens, horse corrals, poultry cages or similar facilities for pets or the raising of animals shall not be permitted. All pets will be confined or on a leash of six feet or less in length. Horses, cattle, other large livestock, or exotic pets are not permitted. Any animal exhibiting dangerous or aggressive behavior will not be permitted and shall be removed from Government property immediately. Pets are not permitted in the gatehouse at any time.
 - d. Any items detracting from the overall appearance of the site must be removed as instructed by the POC.
3. The contractor will provide their own transportation for conducting duties or providing surveillance within the park, including transportation to other nearby parks for duties that may be required in the SOW. This will also include transportation for banking and mailing activities, or any other activities covered in the SOW. All vehicle expenses, including fuel, are the responsibility of the contractor.

4. The contractor will pay the cost of postage and cashier's checks for fee transmittals (unless otherwise stated in the Site-Specific SOWs).
5. The contractor will provide some minor materials, supplies, and equipment to accomplish the work set forth in this contract, other than those items listed as furnished by the Government (see SS SOW).
6. The contractor may be required to provide supplies and materials necessary to clean the gatehouse. (see SS SOW).
7. The contractor may be required to provide a lawn mower/weed eater and fuel for their operation. (see SS SOW).
8. All expenses related to performance of work should be included in the contractors' proposed price. Separate payment will not be made for incidental expenses noted above.

C. GOVERNMENT FURNISHED EQUIPMENT/MATERIALS:

1. A site for a self-contained trailer/camper with electric and water utilities supplied by the Government (unless otherwise noted in the SS SOW). A sanitary dump will be available near the entrance of the park. In some cases, a trailer holding tank or a direct sanitary hookup may be available. Communications equipment (radio or telephone) will be provided at the gatehouse. Radio and telephone usage procedures shall follow Corps of Engineers standards as instructed by the POC.
2. The standard electrical pedestal is equipped with a 30 amp GFI breaker, which is adequate for most camp trailers (some locations may have 50 amp service). This may not be adequate for units having appliances such as microwave ovens, washers, dryers, dishwashers, televisions, and air conditioners running at the same time. The electrical pedestals shall not be modified to accommodate any additional load demands.
3. Gatehouse with gate, informational handout materials/pamphlets, copies of CFR Title 36 (rules and regulations) and campground maps.
4. Computer equipment and printers necessary to operate the **RIS** and fee collection system. Other office equipment and supplies as deemed necessary to conduct official business.
5. Vest with Corps of Engineers identification, ball cap with Corps patch, and name tag that shall be worn while on duty.
6. Lawn mower and associated equipment and supplies for mowing or trimming in the immediate vicinity of the gatehouse may be provided by the Government, unless otherwise required to be provided by the contractor. (See SS SOW).
7. Landscape equipment and materials (See SS SOW).
8. The contractor will be required to sign a hand receipt for all property for which he/she will be responsible and will retain accountability until the contract period has ended, at which time

the Government resumes responsibility via written accountability for those items. In the case of any loss, the contractor shall reimburse the Government the cost of replacement of the item.

D. TRAINING REQUIREMENTS:

1. Mandatory training on the **R1S** computer program is required prior to the start of the performance period. The training and general orientation will require from three (3) to five (5) days, as determined by the POC for each location. The contractor will be required to attend this training prior to the actual start date of the performance period. *The amount of time required to attend training must be factored into the proposed price, as separate payment will not be made.* Contractors who are unwilling or unable to learn the **R1S** computer program will be terminated.
2. During the three (3) to five (5) day training, other training and orientation will be provided such as general handling of Government funds, courteousness to the public, radio and telephone usage, personal and visitor safety requirements, and any other aspects of gate attendant duties, some of which may be specific to a particular position or PSA.
3. The contractor shall become familiar with campground policies and the rules and regulations that relate to Corps of Engineers lands ("Title 36"). If a violation is noted, the contractor is to make the first contact, keeping it friendly, and inform the person(s) of the violation. The contractor will not pursue enforcement. If a violation persists, the contractor will then contact a Park Ranger.

E. GATE ATTENDANT GENERAL DUTIES:

1. Gate attendants will perform specific duties daily to implement the reservation, fee collection, and campground management program in accordance with established procedures. Duties include, but are not limited to, the following:
 - a. Register/process campers with reservations. Check site availability for customers without reservations; assign walk-up sites or un-reserved campsites. Register using **R1S** system to account for collection of fees. The contractor will utilize the **R1S** computer program for all transactions whether a site has been reserved or not. This will include accepting credit cards and processing them through the **R1S** system.
 - b. Collect and account for fees generated; maintain current on-site records. (May be required to collect day use fees in multipurpose PSAs) (See SS SOWs).
 - c. Sell Corps annual days use permits, and America the Beautiful Passes as required by the Lake Manager. All monies, receipts, and registers for these sales will be handled and accounted for as instructed by the Lake Manager.
 - d. Provide on-site reservations through **R1S**. The contractor shall **not** take advance reservations over the phone, but will provide advance reservation services for on-site customers, as directed by the instructions from **R1S** and instructed by the POC.

- e. Post reserved facilities. Post reservation signs or cones at picnic shelters, group camping areas, or individual campsites, as instructed by the COR, whether or not the facility is reserved through the **RIS**.
- f. Receive daily arrival reports.
- g. Prepare and forward all associated reports and transmit funds through designated channels. (Instructions will be given during pre-work training sessions).
- h. Inform visitors of proper use of park facilities, for example:

Advise campers to utilize developed facilities only and not camp at undeveloped areas on the lake.

Advise all visitors to park and operate vehicles or camping units only on paved surfaces or at designated overflow areas.

Inform visitors about maintaining quiet hours.

- i. Inform campers who did not vacate their site when expected, to return to the gatehouse to pay additional camping fees.
- j. Inspect the PSA a minimum of two times each day during regular duty hours; scheduled at least 2 1/2 hours apart. At least one inspection should be scheduled just prior to quiet hours to ensure the fees for all occupied sites have been collected. Additional trips into the park may be necessary to physically post reserved sites.
- k. To ensure all fees are collected, additional surveillance may be required, especially during holiday periods, weekends or other heavy usage periods.
- l. Report disturbances such as vandalism, harassment of visitors, rowdiness, speeding, or violation of quiet hours to Park Rangers, or if unable to contact them, to local law enforcement officers. All accidents will be promptly reported to the Park Rangers.
- m. Keep a written log of complaints and criticism of park facilities and provide this information to Park Rangers.
- n. Other specific duties and procedures will be defined in written information and through the pre-work training provided by the Government.
- o. Open and close gates to PSAs as specified in the SS SOW or as instructed by the COR. May be required to open and/or close the gate in case of emergencies, at times other than their regular work shift coverage.
- p. Open and close gates in nearby parks (contractor must furnish their own transportation as stated in the SS SOW).

- q. Assist Park Rangers in maintaining quiet hours from 10 p.m. - 6 a.m. Advise campers who are already camped in the park or who are returning to the park that quiet hours are in effect. Advise Park Rangers of violations.
 - r. Direct late arrivals to overflow areas, other Corps of Engineers parks, or nearby commercial campgrounds.
 - s. Lock and secure the gatehouse after duty hours or at any time it is left unattended.
2. Amounts collected must balance to user permits issued or contractor will be required to reimburse the Government for any shortages or questionable loss of funds. Any loss is to be reported immediately to the Government "Recreation Fee Cashier". When checks are used for payment, the attendant will ensure that the check is completed in accordance with instructions from the **RIS** service (or as instructed by the POC).
 3. Gate attendants may utilize user fee monies to make change; however, personal cash may be needed to make change in some instances, especially at the beginning of a shift. Contractors are required to keep a change fund of their own money of at least \$100 at all times, this requirement will be subject to unannounced audit.
 4. The contractor will not make refunds or credits but will accept such requests and refer them to the Lake Manager. A form will be provided to the customer to request a refund be mailed to them at a later date. Completed forms will be given to a Park Ranger.
 5. Transmittal of Fees. Transmit fees in accordance with instructions from the RIS or the POC. This function includes, but is not limited to, the following items:
 - a. Prepare transmittal forms.
 - b. Tabulate fees collected.
 - c. Convert cash collections into cashier's checks for transmittal (at contractor's expense) (or as otherwise specified in the SS SOWs).
 - d. Mail or transport transmittal forms, cashier's checks, and personal checks to the proper location as instructed by the POC. If mailing directly to RIS, shall be mailed during normal business hours (Monday-Friday) from inside the US Post Office facility or from Project Office.
 - e. Provide a copy of the computer-generated deposit summary report (DSR) for each fee transmittal, and provide it, with a copy of the corresponding cashier's check and a copy of all personal checks to the Lake Office for verification and audit purposes each week or at the end of their shift.
 - f. Use fee collections will be transmitted as soon as possible when the total reaches \$5,000, but no later than the morning of the next business day financial institutions are open (in the case of weekends and holidays). This will normally require submittals on Monday and Friday mornings.

- g. Funds shall never exceed \$5,000 before being remitted.
 - h. Funds shall **not** be held longer than one week, even if the total is less than \$5,000.
 - i. On-hand funds and fee collection records will be subject to unannounced audits as deemed necessary by the Lake Manager.
- 6. Separate payment will **not** be made to the contractor for postage, time spent banking, cost of cashier's checks, transportation expenses associated with fee transmittal. *Compensation for these items must be included as part of the contractor's quotation. (see SS SOW).*
 - 7. The contractor may be required to perform duties at times other than their normal shift. This may include, but not limited to, opening gates for emergencies or for persons already camped in the park, directing late arrivals to overflow areas, and closing/opening gates at specified times, which may include other nearby park areas. (See SS SOW).
 - 8. May be required to accomplish some light duty tasks including, but not limited to, emergency shut-off of park utilities, reading traffic counters, and delivering messages to campers or other contractors.
 - 9. May be required to mow the area in the immediate vicinity of the gate complex and trailer/camper site. (See SS SOW).
 - 10. May be required to maintain existing landscape plantings in the PSA, to include planting, weeding, and watering. (Government furnished plant materials). (See SS SOW).

F. OTHER REQUIREMENTS:

- 1. While patrolling the campground or performing any duties under this contract, the contractor is required to wear either the vest provided or an approved clean red polo shirt (supplied by the contractor) with a specified patch or logo (provided by the Government) as a means of identification. Only caps provided by the Corps of Engineers may be worn while on duty. The wearing of this cap is recommended, but optional. The contractor may also be required to display vehicle identification while on duty (provided by the Government).
- 2. Possession of firearms in the gatehouse or in the park is prohibited and will be grounds for immediate termination of the contract.
- 3. When reporting for or while on duty, being under the influence of/or consuming alcoholic beverages is strictly prohibited and will be grounds for immediate termination of the contract.
- 4. Illegal use of drugs, or possession of controlled substances, is grounds for immediate termination, whether or not it is during duty hours.
- 5. All work shall be conducted in accordance with the Corps of Engineers Safety and Health Requirements Manual, EM 385-1-1. Copies are available at all lake offices, or on the Tulsa District website.

6. Smoking is not allowed inside, or within 50 feet, of the gatehouse.
7. Keep the gatehouse clean and sanitary at all times. Cleaning supplies shall be furnished by the contractor (unless otherwise specified in the SS SOW). Gatehouse cleaning includes sweeping, dusting, cleaning windows, doors and fixtures, and proper disposal of trash.
 - a. Trash shall be emptied daily.
 - b. Floor shall be swept and mopped daily.
 - c. All surfaces dusted at least once during each shift.
 - d. Windows will be cleaned monthly, at minimum.
 - e. Keep entrance & exit lane road free of unsightly debris, trash, litter, etc. This may be accomplished by broom, leaf blower or other method approved in advance by the POC (a hose & water will not be used unless instructed by the POC).
 - f. Keep exterior of gate house free of cobwebs or other debris. Stinging insect nests on the exterior of the gatehouse will be reported to the POC, Park Ranger, or lake office.
8. Radio and telephone equipment is for official business only, in accordance with FCC regulations and Corps of Engineers instructions. The public is not allowed to use the telephone, except in the case of an emergency (collect calls only).
9. Selling of personal items for monetary gain within the PSA is strictly prohibited. Such activity may be cause for termination of the contract.

**SITE SPECIFIC SCOPE OF WORK
2026 GATE ATTENDANTS
RED RIVER AREA PUBLIC SITE AREAS (s)
TULSA DISTRICT, US ARMY CORPS OF ENGINEERS
SOLICITATION NO.**

Locations:

OKLAHOMA and TEXAS

PAT MAYSE:

Pat Mayse West – Shift B

PINE CREEK:

Little River – Shift 2

SARDIS:

Potato Hills Central

TEXOMA:

Caney Creek 3-Day

East Burns Run

WAURIKA:

Chisholm – Shift B

PAT MAYSE LAKE, TX
PAT MAYSE WEST/EAST PSA – SHIFT A
GATE ATTENDANT SERVICES

POC for this location is Luke Mahan, 903-732-3020 Ext 2.

In addition to the requirements stated in the GENERAL SCOPE OF WORK, the following work will be performed at Pat Mayse West; however, work at Pat Mayse East is also required as detailed below.

1. Period of performance includes months of April through September of each contract period, and excludes October through March. Attendants will:
 - a. Shift A start date for this contract is 1 April.
 - b. Work a rotating schedule with 4 days on/4 days off.
 - c. Work hours 1 April – 30th September are: 10:00 am to 8:00 pm each work day.
2. Pat Mayse West has 88 camp sites and 2 boat ramps (there are no swimming beaches or shelters at this location).
 - a. The contractor must furnish and occupy a self-contained camper/or trailer at one of the available contractor campsites near the park entrance.
 - b. Open the entrance gate to the park at 6 a.m. and close the gate at 10 p.m. each work day from 1 April – 30th September.
 - c. Maintain flower beds at the front gate shack. Such tasks will include water and weeding, etc.
 - d. Responsible for all collections and remittance of fees collected within this park during the contract period.
 - e. The gate house shall be kept clean at all times.
 - f. Collect user fees from self-deposit (honor) fee vaults, a minimum of 1 time during each 4 day shift, at the following locations. Contractor will provide their own transportation for collecting all user fees.
 - g. Sell America the Beautiful passes and U.S. Army Corps Annual day use passes. Collect and remit those fees to Recreation 1 Stop.
 - h. Responsible for placement/removal of reservation tags on site Carsonite post.

- i. A minimum of two entire route loops through the park during each working shift.
3. Pat Mayse West Park (1 vault)
The proceeds from this honor vault at Pat Mayse West will be tallied and remitted into the R1S system.
4. Pat Mayse East Park include (3 Vaults): Loop A Boat Ramp, Loop A Swim Beach, Loop B Boat Ramp. The proceeds from the vaults will be tallied and then converted by the contractor into a cashier's check; these proceeds will then be inputted into the R1S system for remittance.
5. Pat Mayse East has 26 Sites, 2 boat ramps, and a swim beach (There are no shelters in this park).
 - a. The contractor must inspect the PSA a minimum of two times each day during regular duty hours; scheduled at least 3 1/2 hours apart. At least one inspection should be scheduled just prior to quiet hours to ensure the fees for all occupied sites have been collected. During inspections the contractor must check people in or out and physically post reservation tags onto the campsite markers.
 - b. Provide on-site reservations through R1S for PSA. The contractor shall not take advance reservations over the phone, but will provide advance reservation services for on-site customers, as directed by the instructions from R1S and instructed by the POC.
6. Further guidance on user fees will be provided during the training/orientation meetings.
7. Security bond is \$5,000 (see "General Requirements").

**PRICING SCHEDULE
GATE ATTENDANT SERVICES
PAT MAYSE LAKE, TX
PAT MAYSE WEST PUA – SHIFT B**

CONTRACTOR SHALL FURNISH ALL LABOR, MATERIAL, EQUIPMENT, ETC. NECESSARY TO PERFORM ALL WORK IN STRICT ACCORDANCE WITH THE SPECIFICATIONS, TERMS AND CONDITIONS SET FORTH IN THE CONTRACT TO INCLUDE ALL ATTACHMENTS THERETO.

			Unit	Total
<u>Description</u>	<u>Quantity</u>	<u>Unit</u>	<u>Price</u>	<u>Amount</u>
<u>BASE ITEM:</u> 2026-2027 Contract Period				
0001 Gate Attendant Work	_____	DAYS	\$ _____	\$ _____
<u>Option 1:</u> 2027-2028 Contract Period				
1001 Gate Attendant Work	_____	DAYS	\$ _____	\$ _____
TOTAL (Base, Option 1)				\$ _____

Contractor Name (printed)

Signature

**PINE CREEK LAKE, OK
LITTLE RIVER PARK SHIFT 2 PUA
GATE ATTENDANT SERVICES**

POC for this location is Dakota Christian, 580-933-4239 EXT. 5714

In addition to the requirements stated in the GENERAL SCOPE OF WORK, the following work will be performed at this location.

1. Period of performance is 1 Mar – 31 Oct. Contract period is 1 Mar – 31 Oct.

- a. Contractor will work 5 days continuous days on duty then have 5 continuous days off duty.
- b. Shift 2 will begin on the 6th day, second rotation, of the contract period.
- c. For the period 1 Mar – 31 Oct, hours are:

Days on Duty	12 Noon – 8 P.M.
Holiday hours	12 Noon – 8 P.M.

c. The contractor is required to work on holidays. The contractor will occupy the gate house and lock the entrance gate at 10pm on assigned holiday work days.

2. Little River Park has 89 camp sites, 2 boat ramps, and a Group Camping Area. PUA is located 28 miles W of Broken Bow, Oklahoma on Highway 3.

a. A camping pad is provided, and the contractor is required to remain onsite overnight during scheduled duty for security and emergency access.

b. The contractor is required to be present in the gate house during the specified work schedule. The contractor will make a minimum of 3 patrols throughout the park during their daily shift. Contractor will be responsible to the ranger on duty.

c. The contractor will unlock the entrance gate to the campground at 6 A.M. and lock the campground gate at 10 P.M. each duty day, with holiday and non-work day exceptions.

d. The contractor will collect and submit camping fees, day-use fees, America the Beautiful pass fees and other fees from Little River Park, Lost Rapids Park and Turkey Creek Park as indicated by the Lake Manager. All fees will be collected and accounted for daily.

e. Public interaction and assistance with respect to questions, reading materials, and directions will be required. Reserve America and ranger assistance will be available.

LITTLE RIVER SHIFT 2 PUA (continued)

f. The contractor may be required to attend two gate attendant meetings during the work period, as scheduled by the Lake Manager or representative. These meetings are mandatory regardless of work schedule.

g. The contractor will furnish all office and cleaning supplies for gate house. These will include but are not limited to the following: envelopes, stapler, staples, ink pens, dry erase marker/wax pencil, tape dispenser, tape, paper towels, mop, broom, all-purpose cleaner(s) and small trash bags, etc.

h. Mowing- Once during the five day work period the contractor will be required to mow and trim the grass adjacent to their site and gate shack as directed by the Lake Manager.

i. Flower bed maintenance- The contractor shall be required to water, weed and otherwise maintain the flower bed in front of the gate shack as directed by the Lake Manager.

j. Bollard posting in all three parks must be done seven days prior to a reservation, and must fit adequately on posts. Bulletin boards must be updated as directed.

3. Security bond is \$5,000 (see “General Requirements”).

**PRICING SCHEDULE
GATE ATTENDANT SERVICES
PINE CREEK LAKE, OK
LITTLE RIVER SHIFT 2 PSA**

CONTRACTOR SHALL FURNISH ALL LABOR, MATERIAL, EQUIPMENT, ETC. NECESSARY TO PERFORM ALL WORK IN STRICT ACCORDANCE WITH THE SPECIFICATIONS, TERMS AND CONDITIONS SET FORTH IN THE CONTRACT TO INCLUDE ALL ATTACHMENTS THERETO.

<u>Description</u>	<u>Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Total Amount</u>
<u>BASE ITEMS:</u>				
0001 2026 Contract Period	120	DAYS	\$_____	\$_____
<u>OPTION 1:</u>				
1001 2027 Contract Period	120	DAYS	\$_____	\$_____
<u>OPTION 2:</u>				
2001 2028 Contract Period	120	DAYS	\$_____	\$_____
TOTAL (Base, Option 1 & Option 2)				\$_____

Contractor Name (Print)

Signature

**SARDIS LAKE, OK
POTATO HILLS CENTRAL PUA
SITE SPECIFIC SCOPE OF WORK
GATE ATTENDANT SERVICES**

POC for this location is Thomas Irish, 918-569-4131

In addition to the requirements stated in the GENERAL SCOPE OF WORK, the following work will be performed at this location.

1. Period of performance is 1 April – 30 September.

a. For the period 1 April – 30 September, the contractor will work 5 days per week (Wednesday - Sunday). Hours are: 12 noon – 8:00 p.m. Total days for 2026 are 133, for 2027 are 133, and 134 days in 2028, with total for contract being 400 days worked. When one of the three federally recognized holidays (Memorial Day, Independence Day, or Labor Day) fall on a non-scheduled workday, the contractor will be required to work that day as listed below:

Monday, May 25, 2026 (Memorial Day)
Monday, September 7, 2026 (Labor Day)
Monday, May 31, 2027 (Memorial Day)
Monday, September 6, 2027 (Labor Day)
Monday, May 29, 2028 (Memorial Day)
Tuesday, July 3, 2028 (Day Prior to Independence Day)
Monday, July 4, 2028 (Independence Day)
Monday, September 4, 2028 (Labor Day)

2. Potato Hills Central PUA has 94 camp sites and 2 group camp areas.

a. When on duty at Potato Hills central the contractor is required to open the entrance gate to the park at 6:00 am and close it at 10:00 pm.

b. A camping pad is provided in Potato Hills Central and the contractor is required to remain onsite overnight during scheduled duty for security and emergency access.

c. Contractor will be responsible for all collections and remittance of fees collected at the gate shacks during the contract period. This will require the use of a computer and becoming familiar with the Recreation One Stop web-based data base that is used at both parks for operations.

d. Public interaction and assistance with respect to questions, reading materials, and directions will be required. Recreation 1 Stop and ranger assistance will be available.

e. As needed by visitors make camping reservations and sell day use passes for both Potato Hill South and Sardis Cove.

f. Gate house shall be kept clean at all times.

g. Weed and water flower beds at the gate house as needed. Contractor will supply all hand tools required for flower bed maintenance. Plantings will be furnished by the Government.

h. Contractor will be required to extend their work shift to twelve-hour days for up to four days per year on days where visitors typically return later than 10 pm. These dates will be determined as needed by the Lake Manager.

i. Post reservation information each scheduled work day (or as needed) at each individual campsite and group picnic shelter (a Phillips screwdriver will be needed for changing reservation markers).

j. Copies of paperwork related to fee collection must be turned in weekly to the recreation fee cashier at the Lake Office.

k. Patrol Potato Hills Central a minimum of 3 times during each shift. Additional patrols may be required to ensure all fees have been collected; reservation markers have not been changed by visitors; and general security.

l. Patrol Potato Hills South Park a minimum of 1 time during each shift. Additional patrols may be required.

3. Security bond will be \$5,000 (as stated in “General Requirements”).

**PRICING SCHEDULE
GATE ATTENDANT SERVICES
SARDIS LAKE
POTATO HILLS CENTRAL (5 DAY)**

CONTRACTOR SHALL FURNISH ALL LABOR, MATERIAL, EQUIPMENT, ETC. NECESSARY TO PERFORM ALL WORK IN STRICT ACCORDANCE WITH THE SPECIFICATIONS, TERMS AND CONDITIONS SET FORTH IN THE CONTRACT TO INCLUDE ALL ATTACHMENTS THERETO.

<u>Description</u>	<u>Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Total Amount</u>
<u>BASE ITEMS:</u>				
0001 2026-2027 Contract Period	133	DAYS	\$_____	\$_____
<u>Option 1:</u>				
1001 2027-2028 Contract Period	133	DAYS	\$_____	\$_____
<u>Option 2:</u>				
2001 2028-2029 Contract Period	134	DAYS	\$_____	\$_____
TOTAL (CLINs 0001 through 2001)				\$_____

Contractor Name (printed)

Signature

**LAKE TEXOMA, OK CANEY CREEK - 3 DAY
GATE ATTENDANT SERVICES LAKE TEXOMA, OK – CANEY CREEK**

POC for this location is Mark Snyder, 903-465- 4990, ext. 7830.

In addition to the requirements stated in the GENERAL SCOPE OF WORK, the following work will be performed at this location.

1. Period of performance is 1 May – COB on the Friday following the Labor Day Holiday Weekend.

a. The contractor will work 3 days per week (Friday – Sunday) and Federal Holidays as specified.

b. Work hours are:

Friday - Sunday 10 A.M. – 8 P.M.

Holiday hours 10 A.M. – 10 P.M.

c. Contractor is required to work on holidays. Holiday work shall be the Friday – Sunday weekend of the holiday and the holiday itself. The total number of holiday work shifts is 16 days. Contractor will occupy the gate house and lock the entrance gate at 12 midnight on holiday work days.

2. Caney Creek PSA has 52 camp sites, boat ramp and a pavilion. Caney Creek PSA is located at 1770 Muncrief Rd, Kingston OK 74349. a. A camping pad is provided and the contractor is allowed to remain onsite overnight during scheduled duty for security and emergency access. The contractor can arrive no earlier than one (1) week prior to the beginning of the Period of Performance and must vacate the premises within one (1) week of the end of the Period of Performance. All personal property will be taken with contractor at the end of contract period.

b. Contractor is required to be present in the gate house at all times during the specified work schedule. The contractor will make a minimum of 3 patrols throughout the park during their daily shift. This contract requires two (2) individuals be on site to fulfill the duties specified in this contract during duty hours. Both individuals must be capable of performing all duties including operating the National Recreation Reservation Service software. Both individuals will remain on site unless approved by the Contracting Officer Representative. Contractor will be responsible to the ranger on duty.

c. Contractor will unlock the entrance gate at 6 A.M. and lock the gate at 10 P.M. each work day, with holiday and non-work day exceptions. The contractor will be required to return and close the entrance gate at 10 P.M. when contractor work hours end at 8 P.M on scheduled work days.

d. Contractor will collect and submit camping fees, day-use fees, and other fees indicated by the Lake Manager. Copies of paperwork related to fee collection must be turned in weekly to the Lake Office. Contractor is required to acquire a cashier's check for all fees collected each week. Paperwork and cashier's check will be submitted to the National Recreation Reservation System weekly. All fees will be collected and accounted for daily.

e. Public interaction and assistance with respect to questions, reading materials, and directions will be required. Reserve America and ranger assistance will be available.

f. Contractor may be required to attend two gate attendant meetings during the work period, as scheduled by the Lake Manager or representative. These meetings are mandatory regardless of work schedule.

g. Contractor will furnish all office and cleaning supplies for gate house. These will include but are not limited to the following: stapler, staples, ink pens, dry erase marker/wax pencil, tape dispenser, tape, paper towels, mop, broom, all-purpose cleaner(s) and small trash bags, etc. Gate house shall be kept clean at all times.

h. Contractor will water and weed flower beds at the gate house as needed. Contractor will supply all hand tools required for flower bed maintenance. Plantings, mulch and water hoses will be furnished by the Government.

- i. Bollard posting must be done seven days prior to a reservation. Day-use (boat launch and/or day-use) envelopes will be filled routinely. Bulletin boards must be updated as directed.
- j. Security bond is \$5,000 (see “General Requirements”).

**PRICING SCHEDULE
GATE ATTENDANT SERVICES
LAKE TEXOMA, OK
CANEE CREEK**

CONTRACTOR SHALL FURNISH ALL LABOR, MATERIAL, EQUIPMENT, ETC. NECESSARY TO PERFORM ALL WORK IN STRICT ACCORDANCE WITH THE SPECIFICATIONS, TERMS AND CONDITIONS SET FORTH IN THE CONTRACT TO INCLUDE ALL ATTACHMENTS THERETO.

<u>Description</u>	<u>Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Total Amount</u>
<u>BASE ITEMS:</u>				
0001 2026 Contract Period	60	DAYS	\$_____	\$_____
<u>OPTION 1:</u>				
1001 2027 Contract Period	59	DAYS	\$_____	\$_____
<u>OPTION 2:</u>				
2001 2028 Contract Period	57	DAYS	\$_____	\$_____
TOTAL (Base, Option 1 & Option 2)				\$_____

Contractor Name (Print)

Signature

**GATE ATTENDANT SERVICES
LAKE TEXOMA, OK
EAST BURNS RUN**

POC for this location is Mark Snyder, 903-465- 4990, ext. 7830.

In addition to the requirements stated in the GENERAL SCOPE OF WORK, the following work will be performed at this location.

1. Period of performance is 1 April – COB on 30 September.

a. The contractor will work 5 days per week (Wednesday – Sunday) and Federal Holidays as specified.

b. Work hours are:

Wednesday - Sunday 10 A.M. – 8 P.M.

Holiday hours 10 A.M. – 10 P.M.

c. . Contractor is required to work on holidays. Holiday work shall be the Friday – Sunday weekend of the holiday and the holiday itself. The total number of holiday work shifts is 16 days. Contractor will occupy the gate house and lock the entrance gate at 12 midnight on holiday work days.

2. East Burns Run PSA has 47 camp sites, boat ramp and a pavilion. East Burns Run, 525 E. Burns Rd, Cartwright OK 74731 a. A camping pad is provided and the contractor is allowed to remain onsite overnight during scheduled duty for security and emergency access. The contractor can arrive no earlier than one (1) week prior to the beginning of the Period of Performance and must vacate the premises within one (1) week of the end of the Period of Performance. All personal property will be taken with contractor at the end of contract period.

b. Contractor is required to be present in the gate house at all times during the specified work schedule. The contractor will make a minimum of 3 patrols throughout the park during their daily shift. This contract requires two (2) individuals be on site to fulfill the duties specified in this contract during duty hours. Both individuals must be capable of performing all duties including operating the National Recreation Reservation Service software. Both individuals will remain on site unless approved by the Contracting Officer Representative. Contractor will be responsible to the ranger on duty.

c. Contractor will unlock the entrance gate at 6 A.M. and lock the gate at 10 P.M. each work day, with holiday and non-work day exceptions. The contractor will be required to return and close the entrance gate at 10 P.M. when contractor work hours end at 8 P.M on scheduled work days.

d. Contractor will collect and submit camping fees, day-use fees, and other fees indicated by the Lake Manager. Copies of paperwork related to fee collection must be turned in weekly to the Lake Office. Contractor is required to acquire a cashier's check for all fees collected each week. Paperwork and cashier's check will be submitted to the National Recreation Reservation System weekly. All fees will be collected and accounted for daily.

e. Public interaction and assistance with respect to questions, reading materials, and directions will be required. Reserve America and ranger assistance will be available.

f. Contractor may be required to attend two gate attendant meetings during the work period, as scheduled by the Lake Manager or representative. These meetings are mandatory regardless of work schedule.

g. Contractor will furnish all office and cleaning supplies for gate house. These will include but are not limited to the following: stapler, staples, ink pens, dry erase marker/wax pencil, tape dispenser, tape, paper

towels, mop, broom, all-purpose cleaner(s) and small trash bags, etc. Gate house shall be kept clean at all times.

h. Contractor will water and weed flower beds at the gate house as needed. Contractor will supply all hand tools required for flower bed maintenance. Plantings, mulch and water hoses will be furnished by the Government.

i. Bollard posting must be done seven days prior to a reservation. Day-use (boat launch and/or day-use) envelopes will be filled routinely. Bulletin boards must be updated as directed.

j. Security bond is \$5,000 (see "General Requirements").

**PRICING SCHEDULE
GATE ATTENDANT SERVICES
TEXOMA LAKE
EAST BURNS RUN**

CONTRACTOR SHALL FURNISH ALL LABOR, MATERIAL, EQUIPMENT, ETC. NECESSARY TO PERFORM ALL WORK IN STRICT ACCORDANCE WITH THE SPECIFICATIONS, TERMS AND CONDITIONS SET FORTH IN THE CONTRACT TO INCLUDE ALL ATTACHMENTS THERETO.

<u>Description</u>	<u>Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Total Amount</u>
<u>BASE ITEMS:</u>				
0001 2026 Contract Period	133	DAYS	\$_____	\$_____
<u>OPTION 1:</u>				
1001 2027 Contract Period	133	DAYS	\$_____	\$_____
<u>OPTION 2:</u>				
2001 2028 Contract Period	133	DAYS	\$_____	\$_____
TOTAL (Base, Option 1 & Option 2)				\$_____

Contractor Name (Print)

Signature

**WAURIKA LAKE
CHISHOLM TRAIL PARK - SHIFT B
GATE ATTENDANT SERVICES**

POC for this location is Destany Rochell, 580-963-2111.

In addition to the requirements stated in the GENERAL SCOPE OF WORK, the following work will be performed at this location.

1. Period of Performance is 01 May through 30 September.

a. Start work date is 04 May 2026.

b. Work three (3) days on, three (3) days off throughout the performance period.

b. Regular work hours are:

10:00 a.m. - 10:00 p.m.

c. Holiday weekends (If scheduled workday falls on Fri.-Mon.)

8:00 a.m. - 10:00 p.m.

(July 4th Holiday work hours will be directed depending on day of week.)

2. PUA has 95 campsites.

a. Perform specific duties to implement the reservation program and submit paperwork and fees collected to Recreation One Stop. Fees will be submitted by cashier's check.

b. Copies of paperwork related to fee collection must be turned in weekly to the recreation fee cashier at the Waurika Lake Office.

c. Put life jackets on the loaner board at the swim beach at the beginning of each shift and bring them back to the gate house at 8:00 p.m. Life jackets will be provided by the government.

d. Patrol park a minimum of two (2) times during each shift. Additional patrols may be required to insure all fees have been collected; reservation markers have not been changed by visitors; and general security.

e. Gate house shall be kept clean at all times. Cleaning supplies will be Government furnished.

f. Weed and water flower beds at the gate house as needed. Contractor will supply all hand tools required for flower bed maintenance.

g. Open park gates at 6:00 a.m. and close gates at 10:00 p.m. on working days.

3. Security bond will be \$1,000 (as stated in "General Requirements").

**PRICING SCHEDULE
GATE ATTENDANT SERVICES
WAURIKA LAKE
CHISOLM TRAIL PARK-SHIFT B**

CONTRACTOR SHALL FURNISH ALL LABOR, MATERIAL, EQUIPMENT, ETC. NECESSARY TO PERFORM ALL WORK IN STRICT ACCORDANCE WITH THE SPECIFICATIONS, TERMS AND CONDITIONS SET FORTH IN THE CONTRACT TO INCLUDE ALL ATTACHMENTS THERETO.

<u>Description</u>	<u>Quantity</u>	<u>Unit</u>	<u>Unit Price</u>	<u>Total Amount</u>
<u>BASE ITEMS:</u>				
0001 2026 Contract Period	75	DAYS	\$_____	\$_____
<u>OPTION 1:</u>				
1001 2027 Contract Period	75	DAYS	\$_____	\$_____
<u>OPTION 2:</u>				
2001 2028 Contract Period	75	DAYS	\$_____	\$_____
TOTAL (Base, Option 1 & Option 2)				\$_____

Contractor Name (Print)

Signature

ANTITERRORISM/OPERATIONS SECURITY REQUIREMENTS, MAY 2022

X	1. General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.
X	2. Antiterrorism (AT) Level I training: All contract personnel requiring routine access to Army installations, facilities, and controlled access areas, or requiring network access shall complete initial and annual refresher AT Level I awareness training. Online AT Level I awareness training is available at https://jko.jten.mil/ (website subject to change).
X	3. Physical security and access control requirements: All contract personnel requiring physical access to a federal installation or facility shall comply with the access control procedures of that location. Contract personnel requiring unescorted access to meet contract performance requirements on a DoD installation in the US shall be vetted by the installation/facility Provost Marshal/Directorate of Emergency Services/Security Office using the National Crime Information Center-Interstate Identification Index (commonly referred to as "NCIC-I11") and Terrorist Screening Database (commonly referred to as "TSDB"). Contract personnel shall comply with all personal identity verification requirements specified in installation/facility policies and procedures. Contract personnel who do not meet requirements for unescorted access to USACE facilities shall coordinate escorted access with the Government representative, as needed. Contract personnel who receive keys, access cards, or lock combinations that provide access to government-owned property shall comply with key and lock control procedures of the RA.
X	4. Contract personnel requiring a common access card (CAC): Contract personnel will be issued a common access card (CAC) only if duties involve one of the following: (1) both physical access to a DoD facility and access to DoD information systems or networks; (2) remote access to a DoD information system or network using DoD-approved remote access procedures; or (3) physical access to multiple DoD facilities or multiple non-DoD federally controlled facilities on behalf of the DoD on a recurring basis for a period of 6 months or more. Before CAC issuance, contract personnel must have, at a minimum, a favorably adjudicated Tier 1 investigation or an equivalent or higher investigation in accordance with applicable Army regulations and Homeland Security Presidential Directive-12 (HSPD- 12). At the discretion of the RA, an initial CAC may be issued based on a favorable review of a fingerprint check and a successfully scheduled Tier 1 investigation with the National Background Investigations Bureau. The RA provides contract personnel with additional information and forms to initiate the CAC issuance

	process, and/or to initiate background investigations, when required. Contract personnel shall complete these processes within established timelines to avoid delays.
	5. Security requirements for contract performance outside the U.S.: For contract performance requirements that involve services or delivery in a foreign country, the Contractor shall comply with the requirements of DFARS clause 252.225-7043. For performance requirements that involve contract personnel accompanying or supporting US Armed Forces deployed outside the US, the Contractor shall comply with the requirements of DFARS clause 252.225-7040. Contract personnel accessing DoD or other federal facilities outside the US shall comply with applicable Status of Forces Agreements and Geographic Combatant Command requirements. Prior to contract personnel traveling outside the US, the Contractor shall provide documentation of AT, OPSEC, and other required training to the Government representative. Additionally, contract personnel shall comply with requirements specified in the DoD Foreign Clearance Guide, including country and theater clearance processes.
X	6. Suspicious Activity Reporting training (e.g. iWATCH, CorpsWatch, or See Something, Say Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.
X	7. Contract personnel requiring access to Government information systems: All contract personnel with access to a government information system (including USACE business systems and CAC-enabled websites) shall comply with applicable DoD and Army regulations, and shall use the organization's User ID-Password Administration and Security System (U-PASS) at commencement of services to request network user accounts. Contract personnel shall complete DoD Information Assurance Awareness training prior to accessing information systems. and annually thereafter.
	8. Contracts requiring a formal OPS EC program: The Contractor shall develop an OPSEC SOP/Plan within 90 days of contract award. The OPSEC SOP/Plan shall be reviewed and accepted by the RA OPSEC Officer. This plan will include a process to identify critical information, where it is located, who is responsible for it, how to protect it, and why it needs to be protected. In accordance with Army and DoD regulations, the contractor shall have a certified Level II OPSEC coordinator, who shall ensure OPSEC compliance during contract performance.
	9. Training requirements for the protection of sensitive information: All contract personnel with access to critical information (as identified in the RA's OPS EC Program) shall complete initial and annual refresher OPS EC Level I Awareness training, which is available at the following websites: https://www.iad.gov/ioss/ , or http://www.cdse.edu/catalog/operations-security.html (websites subject to change). All contract personnel with access to Controlled Unclassified Information (CUI) shall complete initial and annual refresher CUI training in accordance with applicable Army policy.
	10. Information Assurance (IA)/Information Technology (IT) requirements: All contract personnel performing IA/IT services must comply with DoD training and certification requirements specified in DoD 8570.01-M, Information Assurance Workforce Improvement Program, and maintain required background investigations specified in RA policy. Contract personnel shall provide the Government representative with documentation of certification(s) prior to performing on the contract. In accordance with applicable DoD, Army, and USACE regulations, the Contractor shall ensure that all information systems (IS) and platform information technology (PIT) systems developed and/or supported under this contract comply with cybersecurity and architectural requirements, including, but not limited to: security technical implementation guides (STIG)(e.g., the current version of the Application Security and Development STIG, and the internet access point (IAP) demilitarized zone (DMZ) STIG), and the use of security controls developed under the risk management framework documentation for the system or platform. The Contractor shall address questions regarding these provisions to the Government representative. who will coordinate between the Contractor and the USACE Chief Information Officer (CIO).
	11. Contracts requiring handling or access to classified information: The prime Contractor shall have a Facility Clearance (FCL) at the appropriate level prior to performance on the contract; the RA will sponsor the prime contract company in obtaining the FCL. All cleared contract personnel shall comply with the FCL requirements, as well as applicable laws and regulations regarding contractor access to national security information. For classified contracts, the RA will generate the DD Form 254, which will be attached to the contract.

	12. Threat Awareness Reporting Program: All contract personnel who maintain an active security clearance shall receive initial and annual refresher training on the Threat Awareness and Reporting Program (commonly referred to as "TARP"), provided by a Counterintelligence Agent. As determined by the servicing Counterintelligence Agent for the RA, contract personnel may complete web-based TARP training.
X	13. Escorting in classified and/or sensitive areas: In accordance with applicable regulations, all contract personnel who do not possess the appropriate security clearance or access privileges will be escorted in areas where they may be exposed to classified information or operations, sensitive information or activities, or restricted areas.
X	14. Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (https://www.e-verify.gov/) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1 (i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.
	15. Contracts requiring armed security guards: All contract personnel performing contract security guard duties shall comply with the Individual Reliability Program in accordance with AR 190-56 (The Army Civilian Police and Security Guard Program), as well as applicable installation, facility and area commander installation/facility policies and procedures regarding storing weapons and ammunition in accordance with AR 190-11 (Physical Security of Arms Ammunition, and Explosives).
	16. Contracts requiring delivery of food and water: The supplies delivered under this contract shall be transported in delivery conveyances maintained to prevent tampering with and/or adulteration or contamination of the supplies, and if applicable, equipped to maintain a prescribed temperature. All delivery vehicles and storage locations are subject to inspection at any time by the COR, Post Veterinarian, law enforcement officers, or other RA representatives authorized to conduct such inspections. When the sanitary conditions of the delivery conveyance have led, or may lead to product contamination, adulteration, constitute a health hazard, the delivery conveyance is not equipped to maintain prescribed temperatures, or the transport results in product "unfit for intended purpose," supplies tendered for acceptance may be rejected without further inspection. As the holder of a contract with the DoD, the Contractor shall ensure that all products and/or packaging have not been tampered with or contaminated. The Contractor shall ensure all delivery conveyances are always locked or sealed, except when actively loading or unloading. Unsecured vehicles shall not be left unattended. All incoming truck drivers shall provide adequate identification upon request. In the event of an identified threat to a delivery location, or a heightened force protection/Homeland Security threat level, the Contractor may be required to adjust delivery routes to minimize vulnerability risks and enable direct delivery to DoD facilities.

Offeror Representations and Certifications - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-3 **Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)** (May 2024) Deviation 2025-O0004 (Mar 2025)

Offeror Representations and Certifications-Commercial Products and Commercial Services (MAR 2025) (DEVIATION 2025-O0003 and 2025-O0004)

(a) Definitions. As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
- (3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) Small business concern. The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(2) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) SDVOSB concern joint venture eligible under the SDVOSB Program. The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) Women-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) WOSB joint venture eligible under the WOSB Program. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) Women-owned business concern (other than small business concern). [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) Tie bid priority for labor surplus area concerns. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:_____

(11) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint

venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) Certification Regarding Payments to Influence Federal Transactions (31 <http://uscode.house.gov/> U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) Buy American Certificate. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade

Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line Item No.	Country of Origin
---------------	-------------------

_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
---------------	-------------------	---------------------------------------

_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
---------------	-------------------

_____	_____
_____	_____
_____	_____

[List as necessary]

(4) Trade Agreements Certificate. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) Certification Regarding Responsibility Matters (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) [] Are, [] are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) [] Have, [] have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) [] Are, [] are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [] Have, [] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) Examples.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) Listed end products.

Listed End Product	Listed Countries of Origin
_____	_____
_____	_____

(2) Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) Place of manufacture. (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) Certificates regarding exemptions from the application of the Service Contract Labor Standards (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) Taxpayer Identification Number (TIN) (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) Taxpayer Identification Number (TIN).

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) Type of organization.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other _____.

(5) Common parent.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) Restricted business operations in Sudan. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations.

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) Representation. The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) Representation and Certifications. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) Ownership or Control of Offeror. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed,

and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) Covered Telecommunications Equipment or Services-Representation. Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-17	Ownership or Control of Offeror.	Aug 2020		
52.204-20	Predecessor of Offeror.	Aug 2020		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		
52.217-5	Evaluation of Options.	Jul 1990		
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	Jun 2020		
52.201-1	Acquisition 360: Voluntary Survey.	Sep 2023		

FAR Clauses Incorporated by Full Text

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov _____ [Insert one or more Internet addresses]

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures (Dec 2023)

(a) Definitions. As used in this provision, Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system, and Source have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) Prohibition. Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) Procedures.

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) Representation. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) Disclosures. The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) Executive agency review of disclosures. The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (DFARS)[insert regulation name](48 CFR Chapter2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)